

or corporate, can have an action for a public nuisance, or punish it; but only the king in his public capacity of supreme governor, and *pater-familias* of the kingdom^u. Yet this rule admits of one exception; where a private person suffers some extraordinary damage, beyond the rest of the king's subjects, by a public nuisance: in which case he shall have a private satisfaction by action. As if, by means of a ditch dug across a public way, which is a common nuisance, a man or his horse suffer any injury by falling therein; there, for this particular damage, which is not common to others, the party shall have his action^w. Also if a man hath abated, or removed, a nuisance which offended him (as we may remember it was stated, in the first chapter of this book, that the party injured hath a right to do) in this case he is entitled to no action^x. For he had choice of two remedies; either without suit, by abating it himself, by his own mere act and authority; or by suit, in which he may both recover damages, and remove it by the aid of the law: but having made his election of one remedy, he is totally precluded from the other.

THE remedies by suit, are, 1. By action *on the case* for damages; in which the party injured shall only recover a satisfaction for the injury sustained; but cannot thereby remove the nuisance. Indeed every continuance of a nuisance is held to be a fresh one^y; and therefore a fresh action will lie, and very exemplary damages will probably be given, if, after one verdict against him, the defendant has the hardness to continue it. Yet the founders of the law of England did not rely upon probabilities merely, in order to give relief to the injured. They have therefore provided two other actions; the *assise of nuisance*, and the writ of *quod permittat prosternere*: which not only give the plaintiff satisfaction for his injury past, but also strike at the root and remove the cause itself, the nuisance that occasioned the injury. These two actions however can only be brought by the

^u Vaugh. 341, 342.

^w Co. Litt. 56. 5 Rep. 73.

^x 9 Rep. 55.

^y 2 Leon. pl 129. Cro. Eliz. 402.